

Smt. Kudusia Begum v. State of U.P.

Allahabad High Court · Division Bench · 23 October 2021 · Writ-C No. 27451 of 2021 · **Writ dismissed; relegated to Supply Code appeal.**

HEADNOTE

Where a final assessment order has already been passed after considering objections to the provisional assessment, the High Court will not interfere under Article 226. The consumer's remedy is the statutory appeal under the Electricity Supply Code, 2005, and disputed questions of fact are not to be examined on the writ side.

FACTUAL SUMMARY

Smt. Kudusia Begum filed a writ petition in the Allahabad High Court against a final assessment order dated 16 July 2021. That order had been passed after the assessing authority dealt with her objections to the provisional assessment. The State of Uttar Pradesh and three others were respondents. After hearing counsel for both sides, the Court considered whether it should examine the assessment on the writ side when a statutory appeal under the Electricity Supply Code, 2005 was available and disputed questions of fact remained.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

appeal against final assessment; writ maintainability

HOLDING

Once a final assessment order has been passed after dealing with objections to the provisional assessment, a writ under Article 226 is not maintainable; the consumer must pursue the statutory appeal under the Electricity Supply Code, 2005, and disputed questions of fact are not to be gone into at that stage. ¶ 1

FLAG Court referred to an appeal under the Electricity Supply Code, 2005 without numbering the clause.

PRINCIPLE TAGS

statutory-appeal-bars-writ-final-assessment Writ dismissed because an appeal against the final assessment lies under the Electricity Supply Code, 2005, and disputed facts cannot be examined under Article 226. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE FINAL ASSESSMENT ORDER DATED 16.07.2021

Left to the statutory appeal; the writ court declined to examine disputed questions of fact. ¶ 1